

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                      |                                                                                                  |                                     |                                                       |                                               |                                 |
|--------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|-------------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Kelly Guillon                                                       | Team:<br>Squad #02                                                                               | CCRB Case #:<br>202205427           | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                      |                                                                                                  |                                     | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 08/17/2022 11:28 PM,<br>Thursday, 08/18/2022 12:00 AM | Location of Incident:<br>Over the telephone; and the Transit<br>Bureau District 12 Stationhouse. | 18 Mo. SOL<br>2/17/2024             | Precinct:                                             |                                               |                                 |
| Date/Time CV Reported<br>Thu, 08/18/2022 8:21 AM                                     | CV Reported At:<br>CCRB                                                                          | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Thu, 08/18/2022 8:21 AM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. SGT Elena Stojanovski | 02188  | 940773 | TD 12   |

| Witness Officer(s) | Shield No | Tax No | Cmd Name |
|--------------------|-----------|--------|----------|
| 1. PO Joan Mendez  | 08453     | 960932 | TD 12    |

| Officer(s)                | Allegation                                                                                                                                                       | Investigator Recommendation |
|---------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . SGT Elena Stojanovski | Discourtesy: On August 17, 2022, over the telephone, Sergeant Elena Stojanovski spoke discourteously to § 87(2)(b)                                               | A . Substantiated           |
| B . SGT Elena Stojanovski | Discourtesy: On August 17, 2022, over the telephone, Sergeant Elena Stojanovski acted discourteously toward § 87(2)(b)                                           | B . Unsubstantiated         |
| C . SGT Elena Stojanovski | Abuse: On August 18, 2022, at the Transit Bureau District 12 stationhouse, Sergeant Elena Stojanovski did not process § 87(2)(b) complaint regarding an officer. | C . Substantiated           |

## Case Summary

§ 87(2)(b) filed this complaint via the CCRB's website on August 18<sup>th</sup>, 2022 (BR 01).

On August 17<sup>th</sup>, 2022, at approximately 11:28 PM, § 87(2)(b) called the Transit Bureau District 12 stationhouse regarding her son, § 87(2)(b) who had been arrested. Sergeant Elena Stojanovski of Transit Bureau District 12 allegedly told § 87(2)(b) that she needed "to go have a drink" (**Allegation A: Discourtesy – Word, substantiated**). § 87(2)(b) asked to speak with Sergeant Stojanovski's supervisor, and Sergeant Stojanovski allegedly disengaged the call abruptly (**Allegation B: Discourtesy – Action, unsubstantiated**).

On August 18<sup>th</sup>, 2022, at approximately 12:00 AM, § 87(2)(b) went to the Transit Bureau District 12 stationhouse and told Sergeant Stojanovski that she wished to file a complaint against her. Sergeant Stojanovski told § 87(2)(b) to file a complaint with the CCRB and did not offer to take § 87(2)(b) complaint at the stationhouse (**Allegation C: Abuse of Authority – Refusal to Process Civilian Complaint, substantiated**). § 87(2)(b) left the stationhouse and returned home.

No body-worn camera (BWC) footage was received for either incident (BR 02, 03). The nature of these incidents did not require the activation of BWC. On August 23<sup>rd</sup>, 2022, less than a week after the incident occurred, stationhouse footage was requested from the NYPD. The NYPD, however, did not respond to the request until September 29<sup>th</sup>, 2022, by which point the footage's 30-day retention period had expired (BR 11).

## Findings and Recommendations

**Allegation (A) Discourtesy: On August 17<sup>th</sup>, 2022, over the telephone, Sergeant Elena Stojanovski spoke discourteously to § 87(2)(b).**

**Allegation (B) Discourtesy: On August 17<sup>th</sup>, 2022, over the telephone, Sergeant Elena Stojanovski acted discourteously to § 87(2)(b).**

§ 87(2)(b) was interviewed by the CCRB on September 1<sup>st</sup>, 2022 (BR 04). Sergeant Stojanovski was interviewed on November 14<sup>th</sup>, 2022 (BR 05).

§ 87(2)(b) stated that she called the Transit Bureau District 12 stationhouse and asked Sergeant Stojanovski for an update on § 87(2)(b). Sergeant Stojanovski laughed and told § 87(2)(b) "Yeah, you need to go have a drink, he's a grown man." § 87(2)(b) asked to speak with Sergeant Stojanovski's supervisor, and Sergeant Stojanovski abruptly disengaged the call. § 87(2)(b) felt that Sergeant Stojanovski's comments and actions were unprofessional.

Sergeant Stojanovski stated that she told § 87(2)(b) "Just relax, he'll be fine, you can have a drink," and § 87(2)(b) replied, "I don't drink." Sergeant Stojanovski told § 87(2)(b) "You can have whatever you want to, I'm not telling you what to drink, but I'm telling you to go relax, he's fine," and, "I told you; you can have coffee, you can have tea, whatever you drink, you can go have a drink." Sergeant Stojanovski did not insinuate that § 87(2)(b) should drink an alcoholic beverage. Sergeant Stojanovski did not abruptly disengage the phone call; she told § 87(2)(b) that she had to end the call because there were tasks for her to do at the front desk. At the time of the phone call, Tour 1 was beginning, and Sergeant Stojanovski was busy as the desk sergeant.

Patrol Guide Procedure 200-02 (BR 06) states that the NYPD is committed to treating every citizen with compassion, courtesy, professionalism, and respect.

It is undisputed that, when § 87(2)(b) called the stationhouse to inquire about her son, who had recently been arrested, Sergeant Stojanovski told § 87(2)(b) to “have a drink.” § 87(2)(g)

It is therefore recommended that **Allegation A** be substantiated.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as unsubstantiated.

**Allegation (C) Abuse of Authority: On August 18<sup>th</sup>, 2022, at the Transit Bureau District 12 stationhouse, Sergeant Elena Stojanovski did not process § 87(2)(b) complaint regarding an officer.**

§ 87(2)(b) stated that she spoke with Sergeant Stojanovski at the front desk and asked to make a complaint against her for her comments discussed in **Allegation A**. Sergeant Stojanovski told § 87(2)(b) to call the CCRB and did not offer to take her complaint at the stationhouse.

Sergeant Stojanovski’s statement was generally consistent with § 87(2)(b). She stated that she did not process § 87(2)(b) complaint at the stationhouse and instead told her to call the CCRB because the complaint was against she herself.

Patrol Guide Procedure 207-31 (BR 07) states that when a civilian wishes to file a complaint in-person at a stationhouse, an officer must interview the complainant, provide them with a civilian complaint report, assist or allow another person to assist the complainant with completing the report, and immediately notify the CCRB of the complaint. Even if the civilian “does not want to immediately make a complaint or furnish the member of the service receiving the complaint with details of the incident,” in addition to providing them with the CCRB’s phone number, the officer must provide the individual with a copy of the Civilian Complaint Report form and “advise the complainant that the complaint may be delivered in person, taken over the telephone, or sent by mail.” There is no prohibition against an officer taking a complaint for which they themselves are the subject officer.

§ 87(2)(g) Sergeant Stojanovski did not offer to take § 87(2)(b) complaint at the stationhouse and instead told her to call the CCRB. § 87(2)(g)

It is therefore recommended that **Allegation C** be substantiated.

#### **Civilian and Officer CCRB Histories**

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 08).
- Sergeant Stojanovski has been a member of service for 16 years and has been a subject in five other CCRB complaints and nine other allegations, one of which was substantiated.
  - #201901925 involved a substantiated allegation of Forcible Removal to Hospital against Sergeant Stojanovski. The Board recommended command-level instructions, and the NYPD imposed formalized training.

○ § 87(2)(g) [REDACTED]  
[REDACTED]

**Mediation, Civil, and Criminal Histories**

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- A Notice of Claim search request was submitted to the NYC Comptroller's Office on November 14<sup>th</sup>, 2022. The result will be attached to this case upon receipt (**BR 09**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]  
[REDACTED]

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Squad: 2

|               |                      |                                   |                   |
|---------------|----------------------|-----------------------------------|-------------------|
| Investigator: | <u>Kelly Guillon</u> | <u>Investigator Kelly Guillon</u> | <u>11/17/2022</u> |
|               | Signature            | Print Title & Name                | Date              |

|               |                                 |                          |                   |
|---------------|---------------------------------|--------------------------|-------------------|
| Squad Leader: | <u>Alexander Opoku-Agyemang</u> | <u>IM Opoku-Agyemang</u> | <u>11/17/2022</u> |
|               | Signature                       | Print Title & Name       | Date              |

|           |           |                    |         |
|-----------|-----------|--------------------|---------|
| Reviewer: | <u></u>   | <u></u>            | <u></u> |
|           | Signature | Print Title & Name | Date    |